

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF MISSISSIPPI

Matthew O. Reardon Plaintiff

RECEIVED

Vs.

MAR 17 2023

United States District Court
Northern District of Mississippi

3:22-CV-00050-SA-JMV

State of Mississippi et AL Defendants

Plaintiff's Response To County Defendants' Motion
For Judgement on the Pleadings

Plaintiff Matthew O. Reardon hereby submits his response to County Defendants' Motion For Judgement on the Pleadings [Docs 46, 47] and would show to the Court the following:

- 1) Plaintiff Admits the claims made in Paragraph 1 except for Defendants reference to his claims being a "Laundry List of Vague Federal and State Law Causes of Action"; however Defendants are entitled to their opinions. Plaintiff will not rescind his request for Attorney fees under 42 USC 1988 at this time.
- 2) Plaintiff Denies the claim made by Defendants on Paragraph 2 and oppose Defendants' assertion that his Amended Complaint should be dismissed.
- 3) Plaintiff Admits the claims Made in Paragraph 3, however Plaintiff will be dismissing the claims under 18 USC 242 as well as the False Claims Act in a separately filed Motion he shall submit
- 4) Paragraph 4 states a Legal Conclusion and therefore requires no response from Plaintiff
- 5) Paragraph 5 States a Legal Conclusion and therefore requires no response from Plaintiff

- 6) Plaintiff Denies the Claims made in Paragraph 6, Stating that his 1983 Claims allege Multiple Constitutional Violations and that the email by O'Donnell combined with the Actions of Defendants East, Busby, and Alcorn demonstrate a "Custom" of Lafayette County to deter the questioning and redress of Government Employees, An Absolute Guaranteed Protection under The 1st Amendment based on the Right to Petition the Government For redress of Grievances along with Freedom of the Press which not only covers this, but "Going in Public Places Recording" in order to Factually Document Matters which may be used as evidence later.
- 7) Plaintiff denies the Claims made in Paragraph 7, stating that East waived Qualified Immunity when he ordered Plaintiff to not return to Circuit Court unless he had something to file due to his presence allegedly "Disturbing their business". East then reports Plaintiff exhibiting "concerning behavior" to Defendant Alcorn based upon Questioning Government employees, redressing grievances with Government Employees, and Recording all Interaction to properly document everything. All 3 are clearly established Rights protected under the 1st Amendment, and this is nothing new. Plaintiff's Filed Affidavit of Truth on January 4, 2022 attests to numerous Constitutional Violations along with other violations of Federal Law. Defendant Tacitly Admitted to all stated Violations listed out when he chose not to respond as required. These listed Violations led to additional Deprivation of Rights, severing East's entitlement to Qualified Immunity as multiple named claims are and have been clearly established Law.
- 8) Plaintiff Partially Admits and Partially Denies the Claims made in Paragraph 8 in that the claims under 18 USC 242 and the False Claims Act are improper in this matter and as such Plaintiff will be dismissing those claims on separate Filed Motion. However the claim under 42 USC 1985 is most certainly proper, and Plaintiff Re-Alleges it with Full Force and effect against the named Defendants.
- 9) Plaintiff Denies the claims made in Paragraph 9, and states that he properly served Pre-suit Notice on County Defendants on two separate occasions. The First Pre-Suit Notice was provided to Lafayette County Board Attorney David O'Donnell which was then sent to East. This is the Affidavit/Declaration of Truth Filed 1/4/22, Meeting the 90-Day Requirement. This Declaration was also Filed in circuit court and sent to the MS Attorney General's office.

The 2nd Pre-suit Notice was the Formal Grievance ~~File~~ served on Communicare Executive Director Sandy Rogers with a copy also served on Judge Little's chambers. The grievance was Filed in Lafayette County Chancery Court with a copy also provided to Defendant Wall. The 2nd Notice was provided 2/7/22, however as stated, the 1st Notice met the statutory requirements. As such, Plaintiff's state law claims are Ripe against County Defendants. In response to Defendant's position that Plaintiff's claims are contradictory, Plaintiff Denies this stating that Defendant East acted ^{both} within the course and scope of his employment AND beyond the course and scope of his employment to benefit him ^{as an} individual capacity as well as his official capacity. Plaintiff's state law claims do in fact pass requirements.

- 10) Plaintiff Denies the claims made in Paragraph 10, and states the listed violations serve as a waiver of immunity as the Defendants were served timely notice of violations in accordance with the requirements of MTCA.
- 11) Plaintiff Denies the claims made in Paragraph 11, showing that Sheriff East is not an employee and rather is a Publicly Elected Official of LaFayette County. Based on the numerous stated violations, Plaintiff elected and still elects to sue East in both his official and individual capacities.
- 12) Plaintiff Denies the claims made in Paragraph 12, and would show that Defendants were fully aware that Plaintiff ~~is~~ is a Journalist, and that each Defendant had been provided with a copy of Plaintiff's Press credentials on one or more occasions. Based on this and the information listed on these Press credentials the County Defendants should have anticipated prospective business relationships Plaintiff may have had or been pursuing with third parties not to mention Plaintiff's membership with the Constitution First Amendment Press Association which the Press credentials bore reference to, meeting the requirement decided in Verkin v. Melroy 699 F.2d 729 along with passing the test for intentional/willful conduct regarding tortious interference with business through the presence of knowledge, action, and substantial certainty. Due to the civil commitments which were retaliatory in nature, Plaintiff was completely hindered and prevented from performing any Journalism work. As such Plaintiff's tortious interference claim survives.

County Defendants also allege that their alleged Actions don't warrant a claim of Intentional Infliction of Emotional Distress as ~~the~~ ^{their} conduct doesn't rise to the level of being extreme and outrageous in such a way that would evoke outrage or revulsion. However, Plaintiff shares a completely opposite position and states that the unchecked actions of the Defendants chill the Constitutional Rights and Protections of Citizens and Journalists based upon precedence set if allowed and condoned.

- 13) Plaintiff opposes County Defendants request for Dismissal of all claims, and re-alleges each claim (except as noted in Paragraph 8 of this response) with full force and effect.

Now, After responding to Defendant's claims on their Motion for Judgment on the Pleadings, Plaintiff ~~alleges~~ ^{addresses} additional concerns and arguments Alleged in County Defendants other filings.

Memorandum in Support of Motion for Judgment on the Pleadings (Doc 47)

- 14) In the Introduction, County Defendants are clearly attempting to portray that Plaintiff files Frivolous Lawsuits that "Eventually resulted in dismissal" as if to say that the reasons for bringing the litigation were without merit. County Defendants list out the 2 other Lawsuits Plaintiff filed Pro Se in this Court, One against City of Olive Branch and One against City of Oxford. These lawsuits certainly had merit, particularly the Olive Branch case. However, the complaints were dismissed based upon Plaintiff failing to properly ~~present~~ ^{state} a claim based solely on Plaintiff's inexperience at that time properly styling a complaint and presenting its claims. Being that County Defendants listed these matters, Plaintiff will file a separate Motion to take Judicial Notice of these matters and additionally filing those complaints on this Docket.

- 15) Additionally, County Defendants list two more recent News Articles From HottyToddy.com and The Oxford Eagle which Discuss the matter Plaintiff alleged in his Sworn Declaration requesting Emergency Injunctive Relief and stipulated order for Protection [Doc 60] and Memorandum in support [Doc 59] alleging Retaliation by County Defendants and state in a concerted effort to intimidate and interfere into the Active litigation of this cause. Oddly enough, on 3/1/23 County Defendants filed a Response in opposition to Plaintiff's Sworn Declaration ~~alleging that~~ [Doc 60] which alleged the assertions contained were based on events that occurred after the Filing of this Lawsuit and that the claims should be made on a separate Complaint. However, in listing these Articles in their Memorandum Brief, The County Defendants in turn further justified the claims made in Plaintiff's Declaration [Doc 60] and Memorandum [Doc 59] as being properly before this court based on everything attested to, Oddly enough, County Defendants ~~the latest~~ introduced these matters first in their Memorandum Brief [Doc 47].
- 16) Based upon a plethora of mistakes and misinformation beginning in the County Defendants Factual Summary [Doc 47] at 3, Plaintiff will file with this court his own Definitive Statement of Events which will detail out all relevant events introduced in [Doc 47] which will properly develop the issues along with showing conspiratorial conduct.
- 17) Plaintiff was found Guilty of 5 charges on the Nov. 4, 2021 Trial, NOT 9 as County Defendants Report
- 18) Plaintiff was denied the right to a trial by Jury with The Judge insisting on a bench Trial. This is after all Lafayette County Justice Court Judges recuse along with the First Union County Judge brought in to Preside recusing.
- 19) Plaintiff's Appeal filed in Lafayette County Circuit Court was initially assigned to circuit Judge Kent Smith. before mysteriously changing to Judge John Kelly Luther. County Defendants stated this backwards,

20) The Appeal was filed 12/3/21 and Plaintiff returned to Circuit Court 12/6/21 to question Defendant Busby about why the assigned Judge had changed and who would have changed it. Busby Denied that any record had been changed which Plaintiff believes Sourced the "Paranoid and Delusional" Allegation Made on the Affidavit for commitment to come.

Coincidentally, County Defendants now admit to the Judge being changed which Plaintiff asserted all along was the case. [Doc 42] Id at 4.

21) County Defendants clearly associate asking questions as being what they perceive as harassment based upon their statement IN THEIR OWN WORDS that "I questioned Busby about why the Judge was changed" Despite O'Donnell's December 3, 2021 email warning Plaintiff about his harassment toward the employees in the Clerk's office.

22) Defendant East advised Plaintiff to refrain from going back into Circuit Court unless he had something to file. County Defendants incorrectly state Plaintiff was advised to refrain from continuing to harass the clerks. However East does state that Plaintiff's Presence in the Clerk's office was "Disrupting their business".

23) Questioning and Redressing Matters of Concern within the Government is a Fundamental Right Protected Under the 1st Amendment. In anticipation of County Defendants asserting a "Time, Place, and Manner Restriction" Defense to this, Plaintiff argues the time is proper during normal business hours where the Clerk's office is open. Place is proper in the Circuit Court Clerk's Office/lobby where the matter in question was originally filed. Finally, Manner is proper which Plaintiff had recorded for his own documentation. Evidence Plaintiff Possesses shows him simply asking questions and never being obnoxious nor threatening anyone. As such, this unfair and untrue insinuation amounts to a Violation of the 1st Amendment demonstrating 1st Amendment Retaliation the next day

- 24) County Defendants then go on to allege that on December 7, 2021, the very next day, an affidavit was signed by Defendant Alcorn whom County Defendants reference to as "Executive Director" of Communicare. However, on information and belief, the Executive Director of Communicare is Dr. Sandy Rogers. Plaintiff requests clarity into this as to if this was misstated or if Alcorn now shares the title with Dr. Rogers.
- 25) The Affidavit by Alcorn is fatally flawed based upon the issues of concern attested to. The 1st Reason stating Plaintiff "Goes into Public Places recording people" is constitutionally protected based upon the people being Government Employees and the recording being for ~~documentary~~ ^{documenting} purposes to create an accurate record. Based upon this being alleged as a reason for commitment constitutes a 1st Amendment Retaliation Matter. The 2nd Reason "Paranoid and Delusional" is alleged ^{clearly} based upon the fact that Busby originally denied the allegation by Plaintiff that the Judge had been changed on his Filed Appeal. However, it now appears that County Defendants admit the Judge was changed, something Plaintiff asserted he had evidence of all along showing this assertion to be purely speculative and false by Alcorn. The 3rd Reason attested to was that Plaintiff "Provoked people with his minor child" which was an outrageously untrue claim Plaintiff believes was given to Alcorn by East based upon the fact that in a phone call with Alcorn 12/28/21 she admits to seeing me or witnessing any of these things herself. Plaintiff asserts that evidence of an encounter with Law Enforcement at the end of September 2021 demonstrates precisely the contrary to this that is alleged. However, since that time Defendant East has refused to cooperate with the production of the bodycam video requested which Plaintiff immediately requested under the Public Records Act. Finally the 4th stated reason for commitment was that Plaintiff was "Not taking Meds and Not getting Medical Help." Just like the other 3, this was obnoxious as well as there first wasn't any order requiring that I take any meds and even if I was taking medication, what evidence did this lady ^{Plaintiff} have that any medication wasn't being taken to state this? Not getting Medical Help? Please! Who actually says these type of things?

- 26) The Affidavit takes one last jab at Plaintiff by saying Plaintiff "demonstrated a recent attempt or threat to physically harm himself or others and/or a failure to and inability to provide necessary medical care to himself as a result of the Impairment" Plaintiff has no such impairment nor has he ever had any type of impairment! Plaintiff is a Fully Functioning Adult, USMC Veteran, and Father to 4. Plaintiff is completely competent and able to provide medical care to himself! This assertion by Alcorn was downright repulsive and insulting!
- 27) Further down, County Defendants Admit that in Plaintiff's Declaration of Truth filed 2/4/22 [Doc 1-1] ID at 28 that Plaintiff Accused East of several violations of Federal Law. This Affidavit/Declaration of Truth also served as a notice of claim which was provided at least 90-Days Prior to the Plaintiff Filing his Lawsuit, Meeting The Requirements of the Mississippi Tort Claims Act (MTCOA). Defendant East chose not to respond to any of the claims Made, in turn Tacitly Admitting to All entries and claims listed out.
- 28) February 7th 2022 Plaintiff Filed an 8-Page Formal Grievance with Communicare and Lafayette County Chancery Court, Specifically Judge Lawrence Little. 2-Days After Grievance is presented to all involved parties, Defendants Communicare and Beard File Another Affidavit of Commitment to ~~for~~ Involuntarily Commit Plaintiff For a 2nd time in 2-Months.
- 29) The reason given was that Plaintiff was scheduled to attend a Follow-up Appointment at Communicare during the First Week of January, 2022. Plaintiff was forced to cancel and later reschedule ^{because} ~~due~~ his spouse had just started a new job and they were sharing the same vehicle. Plaintiff expressed to Beard on the Phone that he wished to allow Communicare and Rogers ^{the chance} to respond to his Formal Grievance before rescheduling Appointment. Affidavit was Filed 2/9/22 for Failure to Attend Scheduled Appointment

30) County Defendants then discuss a Rule 12(c) Motion to Dismiss, Comparing it to the Same standard as a Rule 12(b)(6) Motion, However, Neither Motion to Dismiss could survive ^(to Dismiss) based upon the facts stating a claim for relief that is Plausible on its Face.

31) In making what appears to be an argument, County Defendants cite Doe v. United States, 853 F.3d 792, 800 and Jo Seph v. Bach & Wasserman LLC 487 F. App'x 173, 178. In it, The 5th Circuit Court of Appeals Ruled that "The Court may Consider the Complaint, documents attached to the Complaint, documents central to the claims that are referenced in the Complaint, and Matters of Public Record that May be Judicially Noticed" Ironically, the Court should rely on this case law when Considering County Defendants Amended Response in opposition to Plaintiff's Sworn Declaration and request for emergency Injunctive relief With stipulated order for Protection [Doc 63] When Denying County Defendants Opposition Response based upon the fact that the County Defendants had First Referenced the newly alleged claims of Plaintiff Making the documents central to the claims that are referenced.

32) County Defendants allege that Plaintiff's Allegations of Constitutional Violations Fail as a Matter of Law, however this claim is Far from the truth. In Actions against Municipalities, a Plaintiff must show both (1) that a violation of the Constitution Occurred and (2) that a Governmental Policy or Custom was the Moving Force behind the Violation. Both of These are Met and demonstrated clearly by the Actions December 6th and 7th 2021 when The Fundamental Right to Question and Redress grievances in our Government was Considered Harassment and disruptive to Court business after an email was distributed by the County Attorney on December 3rd. Alternatively, ~~in~~ ^{Individual} ~~Independent~~ capacity defendants, the Plaintiff must show (1) that a Violation of the Constitution occurred and (2) that the Individual-capacity Defendants acted objectively Unreasonable under clearly established Law *Atteberry v. Nacona Gen Hosp*) 430 F.3d 245, 250 Plaintiff feels Confident that his claims meet this standard

33) A First Amendment Retaliation Claim requires proof that the Plaintiff was engaged in a Constitutionally protected Activity, the Defendants Conduct caused injury to the Plaintiff "that would chill a person of ordinary firmness from continuing to engage" in the Constitutionally protected Activity, and the Defendants actions were substantially motivated by the Constitutionally protected Conduct" *Cass v. City of Abilene* 814 F.3d 721, 729. This is 100% undeniable as Plaintiff was in fact redressing his local Government regarding a grievance with his Filed case. Plaintiff recorded the interaction, another protected activity. As a result of this, Plaintiff was Judicially committed the next day based on the most shocking and ridiculous of claims. The scare of Judicial Commitment based upon engaging in a Constitutionally protected Activity would chill a person of ordinary firmness from continuing to engage in that Constitutionally protected Activity, no doubt. Finally, the 3rd Criteria is met, and it is the 1st listed reason on the Affidavit for Commitment Filed by Alcorn: "Goes into Public Places Recording People" It cannot be denied that the Defendants Actions were substantially motivated by the Constitutionally protected Conduct.

34) The First Amendment protects the right to gather information about what Public Officials do on Public Property, and specifically a right to record matters of Public Interest - *Smith v. City of Cummings* 212 F.3d 1332

35) Freedom of the Press includes the right to record video and audio - *American Civil Liberties Union of IL v. Alvarez*

36) County Defendants reference multiple times that Plaintiff Concedes he was afforded a hearing. The Plaintiff was only ever afforded one hearing which was part of the 1st (December 2021) Commitment, though Plaintiff would never consider this to be any type of fair hearing. Plaintiff was never afforded any Due Process or hearing on the 2nd Commitment in February, 2022.

COUNTY DEFENDANTS NOTICE OF SERVICE [Doc 54] AND ADDITIONAL CONCERNS EXPLAINED

37) County Defendants Filed a Motion for Judgement on the Pleadings [Docs 46, 47] on January 11, 2023.

- 38) Plaintiff Was Re-Incarcerated at the Lafayette County Detention Center on November 1st 2022 where he was sentenced to serve 1-Year in Prison on November 3rd 2022. Plaintiff remained Incarcerated at LCDC until December 14, 2022 when he was transferred to CMCF in Pearl, MS (Rankin County).
- 39) Upon being transferred to CMCF, Plaintiff was Locked Down For the Majority of each Day until being transferred from "Receiving" to "Quick Bed" on December 28, 2022.
- 40) Approximately 2-Week later (First week of January 2023) Plaintiff's Housing Unit was Coincidentally Placed on Restriction. During the following 3-4 weeks, Plaintiff nor the rest of his housing Unit was allowed to purchase Commissary Items which included Postage, Pens, Paper, and Envelopes among others which Plaintiff was anxiously awaiting. This left Plaintiff feeling trapped on a matter which was already unjust and unfair.
- 41) Around the First week of February 2023, Plaintiff received Paper from the "Law Library" at which point he drew up his Sworn Declaration and Emergency Request for Injunction + Order of Protection which the "Law Library" workers picked up and ultimately filed electronically in this cause on Feb. 14, 2023 [Doc 60]. Plaintiff attested to the fact that back in June 2022 he was blindsided by a Felony charge by Defendants in this Cause for his engaging in a Constitutionally Protected Activity, and that this amounted to 1st Amendment Retaliation which had intentionally Interfered into this Lawsuit as the suit had been served on Defendants by the US Marshalls office less than 3-weeks before Plaintiff was charged. Plaintiff was Coerced by his Public Defender under Duress (due to a Family Crisis) to plea out, Agree to be Banished From Lafayette County for 5-years and he would then expunge it. The Declaration and Memorandum Brief [Doc 59] Detail out an Unconscionable Plan to Entrap and Falsely Imprison Plaintiff for doing what Federal Law Enforcement Agents advised him to do to report a matter of concern.
- 42) Plaintiff currently resides at CMCF in Meridian, MS Awaiting Further Ruling From This Court on the serious matters alleged.

- 43) In County Defendants Notice of Service [Docs 54] Defendants allege ULCR Rule 7(b)(4) stating that Plaintiff was required to file a response in opposition to County Defendants Motion For Judgment on Pleadings [Docs 46, 47] by or before January 25, 2023. Coincidentally all of this happens during the period of time Plaintiff's Housing Unit was on "Restriction",
- 44) In the Court's Order and Memorandum Opinion [Docs 51] which Plaintiff has yet to receive, the Court ordered the Clerk to Mail Order to Plaintiff's attention at Lafayette County Detention Center as well as home Address. The Court also noted in its' Order that Plaintiff is registered to receive Notice of electronic Filings via Email. However what the Court was unaware of was that Plaintiff ~~was~~ sat falsely Imprisoned at a Prison Facility in Central MS without means to communicate out or receive legal Mail as Plaintiff sat restrained ~~from~~ without this Court having Plaintiff's physical Address at that time. Obviously, being Imprisoned, Plaintiff got no electronic notices.
- 45) What should be noted and considered is that Defendant East's Office is at the Lafayette County Detention Center. Without any doubt, Defendant East had knowledge of Plaintiff's transfer to CMCF 12/14/22 as plaintiff sat imprisoned in East's facility up until this date.
- 46) County Defendants allege to have Mailed Copies of their Motion For Judgment on Pleadings [Doc 46] and Memorandum [Doc 47] to Lafayette County Detention Center and Plaintiff's Home Address on or around January 26, 2023. Two Major issues now present themselves which this Court should weigh on. Why was Important Legal Mail sent TWICE to Lafayette County Detention Center never Forwarded to Plaintiff at his transferring facility. With the same level of curiosity and concern, Where in the world was Defendant East, why did East not say anything about Plaintiff no longer being there, and was this information hidden by East or concealed by his Counsel?

47) More and More Complex issues continue to Compound involving Actions and behaviors of Defendants which raise Ethics issues among many others. As such, these noted issues create a more complex decision, a decision of the utmost importance at this time

48) A Majority of Discovery Material And Evidence can be Accessed at [HTTPS://REBRAND.LY/1a-retaliation](https://rebrand.ly/1a-retaliation)

49) Additional Discovery Material and Evidence can be immediately Accessed at [WWW.LAFAYETTES.NET](http://www.lafayettes.net)

50) Full Video of 1st Amendment Audit at Oxford, MS City Hall in which Plaintiffs stated Constitutionally Protected Purpose is Stated Accessible Here > [HTTPS://REBRAND.LY/oxford-audit](https://rebrand.ly/oxford-audit)

WHEREFORE ALL PREMISES CONSIDERED

Plaintiff requests this Court to take Judicial Notice of All Facts, Claims, Exhibits, and additional Discovery. In Assessing All included Information, Plaintiff requests this Court Deny County Defendants Motion for Judgement on Pleadings. In doing so, Plaintiff prays his sworn Declaration and motion for Emergency Injunction w/ order for Protection be ^{granted} approved due to sufficiency of Evidence and Information Supportive of such. Plaintiff is unaware if the State of MS was in fact granted Dismissal in the past 3 months. IF The State of MS was in fact Dismissed, Plaintiff will likely request the permission of this Court ~~to~~ Leave to Appeal such Dismissal via Interlocutory Appeal to the 5th Circuit Court of Appeals. Based on the circumstances which now exist, Plaintiff also requests this Court GRANT his motion for sanctions. Plaintiff prays for Any other Relief, Special or General to which he may be entitled,

Matthew Reardon #210988 submitted this 4th Day of March 2023
East MS Correctional Facility
10641 Hwy 80 E
Meridian, MS
Matthew Reardon - Plaintiff

East MS Correctional Facility
Meridian, MS

MERIDIAN, MS
39307
MAR 14, 23
AMOUNT

\$1.55



RDC 04



\$9.55

CLERK/PRO-SEC CLERK
US District Court
203 Gilmore Dr
AMORY, MS

38821

LEGAL MAIL

Approved Legal Mail

MAR 07 2023

EMCF: LEGAL LIBRARY

PRIORITY
★ MAIL ★

TRACKED
★ ★ ★
INSURED
★

RECEIVED

MAR 17 2023

United States District Court
Northern District of Mississippi

EXPECTED DELIVERY DAY: 03/16/23

USPS TRACKING® #

